

BY-LAW NO. 14696

**A By-law to enact a Housing Agreement
for 282 West 49th Avenue**

THE COUNCIL OF THE CITY OF VANCOUVER, in public meeting, enacts as follows:

1. Council authorizes the City to enter into a Housing Agreement with the owner of certain lands described as:

007-595-573 LOT 4 BLOCK 1165 DISTRICT LOT 526 PLAN 16033

in substantially the form and substance of the Housing Agreement attached to this By-law, and also authorizes the Director of Legal Services to execute the agreement on behalf of the City, and to deliver it to the owner on such terms and conditions as the Director of Legal Services deems fit.

2. This By-law is to come into force and take effect on the date of its enactment.

ENACTED by Council this 19th day of May, 2026

Signed _____ "Ken Sim"
Mayor

Signed _____ "Katrina Leckovic"
City Clerk



Land Title Act

Charge

General Instrument – Part 1

1. Application

DLA Piper (Canada) LLP
1133 Melville Street, Suite 2700
Vancouver BC V6E 4E5
604 687-9444

MC/MLM/TAL/kgf
File No. 117521-00002
(Housing Agreement and Building Use _Social Housing)

2. Description of Land

PID/Plan Number	Legal Description
007-595-573	LOT 4 BLOCK 1165 DISTRICT LOT 526 PLAN 16033

3. Nature of Interest

Type	Number	Additional Information
COVENANT		Entire Instrument
PRIORITY AGREEMENT		priority granted to Covenant with one registration number less than this priority agreement over Mortgage CB990798 and Assignment of Rents CB990799 - Page 23
PRIORITY AGREEMENT		priority granted to Covenant with two registration numbers less than this priority agreement over Right of First Refusal CB990801 - Page 24
PRIORITY AGREEMENT		priority granted to Covenant with three registration numbers less than this priority agreement over Lease CB1069071 - Page 25

4. Terms

Part 2 of this instrument consists of:
(b) Express Charge Terms Annexed as Part 2

5. Transferor(s)

YMCA BC PROPERTIES FOUNDATION, NO.S0050351
MUSQUEAM CAPITAL CORP., NO.BC0829891, (AS TO PRIORITY ONLY)
TOWNLINE VENTURES LTD., NO.BC1174655, (AS TO PRIORITY ONLY)
YMCA BC, NO.S0077541, (AS TO PRIORITY ONLY)

6. Transferee(s)

CITY OF VANCOUVER
453 WEST 12TH AVENUE
VANCOUVER BC V5Y 1V4



7. Additional or Modified Terms

8. Execution(s)

This instrument creates, assigns, modifies, enlarges or governs the priority of the interest(s) described in Item 3 and the Transferor(s) and every other signatory agree to be bound by this instrument, and acknowledge(s) receipt of a true copy of the filed standard charge terms, if any.

Witnessing Officer Signature

CARA CHU
Barrister & Solicitor
Fasken Martineau DuMoulin LLP
2900 - 550 Burrard Street
Vancouver, BC V6C 0A3
604 631 3176

(as to the signature of
marvin Rogers)

Execution Date

YYYY-MM-DD

2026-05-07

Transferor / Transferee / Party Signature(s)

YMCA BC PROPERTIES FOUNDATION
By their Authorized Signatory

Name: MARVIN ROGERS
Name: TONY BAENA

Officer Certification

Your signature constitutes a representation that you are a solicitor, notary public or other person authorized by the *Evidence Act*, R.S.B.C. 1996, c.124, to take affidavits for use in British Columbia and certifies the matters set out in Part 5 of the *Land Title Act* as they pertain to the execution of this instrument.

Witnessing Officer Signature

Execution Date

YYYY-MM-DD

Transferor / Transferee / Party Signature(s)

MUSQUEAM CAPITAL CORP.
By their Authorized Signatory

Name: _____

Name: _____

Officer Certification

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7. Additional or Modified Terms

8. Execution(s)

This instrument creates, assigns, modifies, enlarges or governs the priority of the interest(s) described in Item 3 and the Transferor(s) and every other signatory agree to be bound by this instrument, and acknowledge(s) receipt of a true copy of the filed standard charge terms, if any.

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Execution Date

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YYYY-MM-DD

YMCA BC PROPERTIES FOUNDATION
By their Authorized Signatory

Name:

Name:

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Witnessing Officer Signature

Execution Date

Transferor / Transferee / Party Signature(s)

YYYY-MM-DD

MUSQUEAM CAPITAL CORP.
By their Authorized Signatory

Name:


Wayne Sparrow

Witnessed as to Execution Only
No Legal Advice Sought or Given

Name:

Officer Certification

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Land Title Act
Charge
General Instrument – Part 1

Witnessing Officer Signature

Taylor Lingl
Barrister & Solicitor
DLA Piper (Canada) LLP
1133 Melville Street, Suite 2700
Vancouver, BC V6E 4E5
604.687.9444

Execution Date

YYYY-MM-DD
2026-05-07

Transferor / Transferee / Party Signature(s)

TOWNLINE VENTURES LTD.
By their Authorized Signatory

Name: Dan Jerubik

Name:

Officer Certification

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Execution Date

YYYY-MM-DD

Transferor / Transferee / Party Signature(s)

YMCA BC
By their Authorized Signatory

Name:

Name:

Officer Certification

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Land Title Act
Charge
General Instrument – Part 1

Witnessing Officer Signature

Execution Date

Transferor / Transferee / Party Signature(s)

TOWNLINE VENTURES LTD.
By their Authorized Signatory

YYYY-MM-DD

Name:

Name:

Officer Certification

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Execution Date

Transferor / Transferee / Party Signature(s)

YMCA BC
By their Authorized Signatory

YYYY-MM-DD

2026-05-07

Name: MARVIN ROGERS

Name: TONY BAENA

CARA CHU
Barrister & Solicitor
Fasken Martineau DuMoulin LLP
2900 - 550 Burrard Street
Vancouver, BC V6C 0A3
604 631 3176

(as to the signature of
Marvin Rogers)

Officer Certification

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Land Title Act

Charge

General Instrument – Part 1

Witnessing Officer Signature

Execution Date

Transferor / Transferee / Party Signature(s)

CITY OF VANCOUVER

By their Authorized Signatory

YYYY-MM-DD

Name:

Name:

Officer Certification

Your signature constitutes a representation that you are a solicitor, notary public or other person authorized by the *Evidence Act*, R.S.B.C. 1996, c.124, to take affidavits for use in British Columbia and certifies the matters set out in Part 5 of the *Land Title Act* as they pertain to the execution of this instrument.

Electronic Signature

Your electronic signature is a representation that you are a designate authorized to certify this document under section 168.4 of the *Land Title Act*, RSBC 1996, c 250, that you certify this document under section 168.41 (4) of the Act, and that an execution copy, or a true copy of that execution copy, is in your possession.

TERMS OF INSTRUMENT - PART 2

HOUSING AGREEMENT AND BUILDING USE COVENANT
(Social Housing)

282 WEST 49TH AVENUE

WHEREAS:

A. It is understood and agreed that this instrument and Agreement shall be read as follows:

- (i) the Transferor, **YMCA BC Properties Foundation**, is called the "Owner" as more particularly defined in Section 1.1(v); and
- (ii) the Transferee, **City of Vancouver**, is called the "City" or the "City of Vancouver" when referring to the corporate entity and "Vancouver" when referring to the geographic location;

B. The Owner is the registered owner of the Lands;

C. The Owner made an application to rezone the Lands from CD-1 (103) By-law No. 4900 to a new CD-1 (Comprehensive Development) District (the "**Rezoning**") to permit construction of a new mixed-use development with a total floor area of 53,928 sq. m (580,472 sq. ft.); building heights of 8, 33 and 37 storeys; and residential, retail, service, institutional and cultural and recreational uses, and after a public hearing to consider the rezoning application, the rezoning application was approved by City Council in principle subject to, *inter alia*, fulfilment of the following conditions:

"2.11 Make arrangements to the satisfaction of the General Manager of Planning, Urban Design and Sustainability (or successor in function), and the Director of Legal Services to enter into a Housing Agreement and a Section 219 Covenant securing all dwelling units in the 8-storey mixed-use building as social housing in perpetuity, which will contain the following terms and conditions:

- (a) A no separate-sales covenant;
- (b) A no stratification covenant;
- (c) That the social housing units will be legally and beneficially owned by one or more non-profit corporations, or by or on behalf of the City, the Province of British Columbia, or Canada as a single legal parcel and used only to provide rental housing for terms of not less than one month at a time and prohibiting the separate sale or transfer of legal or beneficial ownership of any such units;
- (d) A requirement that not less than 30% of the social housing units will be occupied only by households with incomes below the current applicable Housing Income Limits, as set out in the current "Housing Income Limits" table published by the British Columbia Housing Management Commission, or equivalent publication, and each rented at a rate no

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Housing Agreement (Social Housing)
282 West 49th Avenue

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higher than 30% of the aggregate household income of the members of the household occupying such social housing unit;

- (e) A requirement that such units to be used for "social housing", as that term is defined in the Vancouver Development Cost Levy By-law No. 9755; and
- (f) Such other terms and conditions at the General Manager of Planning, Urban Design and Sustainability) or successor in function) and the Director of Legal Services may in their sole discretion require.

Note to Applicant: This condition will be secured by a Section 219 Covenant and a Housing Agreement to be entered into with the City by by-law enacted pursuant to Section 565.2 of the Vancouver Charter. Note to Applicant: A Right of First Refusal, Option to Purchase, and Option to Lease agreement are required as described in Condition 2.19 below.

- 2.12 The owner is responsible for demonstrating that they will create, implement and comply with a Building Maintenance Plan ("Plan") for the social housing floor space, to the satisfaction of the General Manager of Planning, Urban Design, and Sustainability. The Plan will include, at a minimum, the following elements:

- (a) A commitment to plan and carry out effective and efficient property management, maintenance and capital replacement of the building;
- (b) Ensure financial viability and sustainability of the property ensuring adequate income/funds to meet costs over the life of the building;
- (c) Require the owner to maintain a capital replacement reserve that is adequately funded from the operating budget (i.e. does not rely on government funding); and
- (d) The owner/operator is responsible for the ongoing maintenance of the building over its full operational life.

Note to Applicant: The final plan is to be submitted by the non-profit housing operator and will be required prior to the issuance of the occupancy permit(s) for the applicable building. At the request of the City, from time to time, the Owner will make the Plan including the capital maintenance plan available to the City."

(together, the "Social Housing Condition"); and

D. The Owner and the City are now entering into this Agreement to satisfy the Social Housing Condition.

NOW THEREFORE THIS AGREEMENT WITNESSES that for good and valuable consideration (the receipt and sufficiency of which the parties hereby acknowledge and agree to) the Owner and the City, pursuant to Section 565.2 of the *Vancouver Charter* and to Section 219 of the *Land Title Act*, agree as follows in respect of the use of the Lands and the New Building:

ARTICLE 1 DEFINITIONS AND INTERPRETATIONS

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Housing Agreement (Social Housing)
282 West 49th Avenue

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1.1 Definitions. In this Agreement the following terms have the definitions now given:

- (a) **"Agreement"** means this housing agreement and building use covenant, including the foregoing Recitals;
- (b) **"Approving Officer"** means the person appointed pursuant to the provisions of the *Land Title Act* as the approving officer for land within the City of Vancouver and includes the deputy to the Approving Officer and any employee of the City acting, or who has acted, as the nominee, delegate or agent of that person;
- (c) **"Building"** means any new building or structure to be built on the Lands as contemplated by any Development Permit, and includes any portion of any such building or structure, but does not include temporary buildings or structures on the Lands during the period of, and required for the purposes of, any construction contemplated by any Development Permit;
- (d) **"Building Maintenance and Capital Asset Plan"** means a building maintenance plan for the New Building in form and substance satisfactory to the General Manager of Planning, Urban Design and Sustainability, acting reasonably, which includes, at minimum, the following elements:
 - (i) a commitment to plan and carry out effective and efficient property management, maintenance and capital replacement of the New Building to the standard of a reasonable and prudent owner of similar buildings in Vancouver, reasonable wear and tear excepted;
 - (ii) ensures financial viability and sustainability of the New Building ensuring adequate income/funds to meet costs over the life of the New Building to the standard of a reasonable and prudent owner of similar buildings in Vancouver, reasonable wear and tear excepted;
 - (iii) requires the Owner to maintain a capital replacement reserve that is adequately funded from the operating budget (ie. does not rely on government funding); and
 - (iv) the Owner or operator of the New Building is responsible for the ongoing maintenance of the New Building over its full operational life;
- (e) **"City"** and **"City of Vancouver"** are defined in Recital A(ii);
- (f) **"City Manager"** means the chief administrator from time to time of the City and his/her successors in function and their respective nominees;
- (g) **"City Personnel"** means any and all of the elected and appointed officials, and officers, employees, agents, nominees, delegates, permittees, contractors, subcontractors and volunteers of the City;

- (h) **"Commencement Date"** means the date as of which this Agreement has been submitted to the Land Title Office;
- (i) **"Development"** means the development on the Lands described in Recital C as contemplated by the Rezoning;
- (j) **"Development Permit"** means a development permit issued by the City authorizing development on the Lands or any portion of the Lands as contemplated by the Rezoning at any time following the date this Agreement is fully executed by the parties;
- (k) **"Director of Legal Services"** means the chief administrator from time to time of the Legal Services Department of the City and her/his successors in function and their respective nominees;
- (l) **"Dwelling Unit"** has the meaning set out in the City's Zoning and Development By-law No. 3575, as amended or replaced from time to time;
- (m) **"General Manager of Planning, Urban Design and Sustainability"** means the chief administrator from time to time of the Planning, Urban Design and Sustainability Department of the City and his/her successors in function and their respective nominees;
- (n) **"Housing Income Limit" or "HIL"** means the income required to pay the average market rent for an appropriately sized unit in the private market in Vancouver, determined annually by the British Columbia Housing Management Commission or its successors in function, which is derived from the Canada Mortgage and Housing Corporation's Annual Rental Market Survey or an equivalent publication (as approved by the General Manager of Planning, Urban Design and Sustainability);
- (o) **"Land Title Act"** means the Land Title Act, R.S.B.C. 1996, c. 250, as may be amended or replaced from time to time;
- (p) **"Lands"** means the lands described in Item 2 in the Form C attached hereto; provided, however, that if the Lands are at any time subdivided (including by air space parcel subdivision), and this Agreement is thereafter discharged from one or more of the resulting legal parcels, then **"Lands"** will thereafter mean only the part of the Lands within the legal parcel(s) against which it remains registered;
- (q) **"Losses"** means any and all damages, losses, fines, penalties, costs (including legal costs on a solicitor and own client basis), actions, causes of action, claims, demands, liabilities and expenses of every nature or kind whatsoever, and indirect or consequential damages (including loss of profit and loss of use and damages arising out of delays);
- (r) **"New Building"** means the new Building to be built on the Lands (and, following Subdivision, to be contained within the Social Housing Parcel)

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Housing Agreement (Social Housing)
282 West 49th Avenue

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containing the Social Housing Units as contemplated by the Development Permit, and includes any portion of any such Building, but does not include: (i) temporary Buildings or structures on the Lands during the period of, and required for the purposes of, any construction contemplated by the Development Permit; and (ii) any other Buildings on the Lands including without limitation the Buildings containing the market rental and strata units;

- (s) **"Occupancy Permit"** means a permit issued by the City authorizing the use and occupation of any Building, development or partial development on the Lands, as the context requires;
- (t) **"Option to Lease"** means the City's right to lease the Social Housing Units and acquire any necessary rights of access and support, as set out in the Option to Lease Agreement submitted to the Land Title Office on or after the Commencement Date for registration against title to the Lands;
- (u) **"Option to Purchase"** means the City's right to purchase the Social Housing Units and acquire any necessary rights of access and support, as set out in the Option to Purchase Agreement submitted to the Land Title Office on or after the Commencement Date for registration against title to the Lands;
- (v) **"Owner"** means the Transferor, YMCA BC PROPERTIES FOUNDATION, and any successors in title to the Lands or a portion of the Lands;
- (w) **"Permitted Transferee"** means one or more entity(ies) that is:
 - (i) a non-profit corporation, a non-profit co-operative association, the City, a First Nation(s), a First Nation(s) Corporation, the Province of British Columbia, Canada or any combination thereof; or
 - (ii) such other entity as is permitted to own and operate "social housing" pursuant to the Vancouver Development Cost Levy Bylaw No. 9755, as in effect at the time of the transfer;
- (x) **"Rental Housing"** means a Dwelling Unit which is not occupied by the registered or beneficial owner of the same, but which is made available by such owner to the general public, at arm's length, for use as rental accommodation on a month-to-month or longer basis in accordance with this Agreement, and pursuant to reasonably prudent landlord-tenant practices for rental residential accommodation and any and all laws applicable thereto, including, without limitation, residential tenancy and human rights legislation in British Columbia;
- (y) **"Replacement Social Housing Unit"** has the meaning ascribed to that term in section 2.1(b) and **"Replacement Social Housing Units"** means all of such units;
- (z) **"Residential Tenancy Act"** means the Residential Tenancy Act S.B.C. 2002, c. 78, as may be amended or replaced from time to time;

- (aa) **"Rezoning"** means the rezoning of the Lands as described in Recital C;
- (bb) **"ROFR"** means the City's Right of First Refusal with respect to the purchase or lease of the Social Housing Units, as set out in the Right of First Refusal Agreement submitted to the Land Title Office on or after the Commencement Date for registration against title to the Lands;
- (cc) **"Social Housing"** has the meaning ascribed to that term in the Vancouver Development Cost Levy By-law No. 9755, namely Rental Housing:
 - (i) in which at least 30% of the dwelling units are occupied by households with incomes below housing income limits, as set out in the current "Housing Income Limits" table published by the British Columbia Housing Management Commission, or equivalent publication;
 - (ii) which is owned by one or more non-profit corporations, non-profit co-operative associations, or by or on behalf of the City, the Province of British Columbia or Canada or by any combination thereof, provided any such combination is permitted under the Vancouver Development Cost Levy By-law No. 9755 and the Vancouver Zoning and Development By-law No. 3575 or such entity as is permitted to own "social housing" pursuant to the Vancouver Development Cost Levy By-law No. 9755 and the Vancouver Zoning and Development By-law No. 3575; and
 - (iii) in respect of which the registered owner or ground lessee of the freehold or leasehold title to the land on which the housing is situate has granted to the City a Section 219 covenant, housing agreement, or other security for the housing commitments required by the City, registered against the freehold or leasehold title, with such priority of registration as the City may require;
- (dd) **"Social Housing Condition"** has the meaning ascribed to that term in Recital C;
- (ee) **"Social Housing Parcel"** means the parcel or remainder following the Subdivision, which will contain, *inter alia*, all of the Social Housing Units;
- (ff) **"Social Housing Units"** has the meaning ascribed to that term in Section 2.1(b), and **"Social Housing Unit"** means any one of such Social Housing Units;
- (gg) **"Subdivision"** means a subdivision of the Lands (including by the deposit of an air space subdivision plan) to enable all of the Social Housing Units to be contained within the Social Housing Parcel;
- (hh) **"Term"** means the term of this Agreement, which will commence on the Commencement Date and will end on the later of:
 - (i) the date as of which the New Building is demolished or substantially destroyed; and

- (ii) 60 years from the date when the final Occupancy Permit is issued for the New Building; and
- (ii) “**Vancouver Charter**” means the Vancouver Charter S.B.C. 1953, c. 55, as may be amended or replaced from time to time.

1.2 Interpretation. In this Agreement:

- (a) Party. Any reference to a party herein will be deemed to include the heirs, executors, administrators, successors, assigns, employees, servants, agents, officers, contractors, licensees and invitees of such parties wherever the context so permits or requires.
- (b) Singular; Gender. Wherever the singular or masculine or neuter is used in this Agreement, the same will be construed to mean the plural or the feminine or body corporate or politic, and vice versa, as the context or the parties so require.
- (c) Captions and Headings. The captions and headings appearing in this Agreement have been inserted as a matter of convenience and for reference only and in no way define, limit or enlarge the scope or meaning of this Agreement or any of the provisions hereof.
- (d) References. References to the or this “**Agreement**” and the words “**hereof**” “**herein**” and similar words refer to this Agreement as a whole and not to any section or subsection or other subdivision hereof and any reference in this Agreement to a designated Recital, Section, subsection or other subdivision is a reference to the designated Recital, Section, subsection or subdivision hereof.
- (e) Governing Law. This Agreement will be governed by and construed in accordance with the laws of the Province of British Columbia and the laws of Canada applicable in British Columbia. Any reference to a statute is to the statute and its regulations in force on the date the Form C General Instrument - Part 1 is fully executed and to subsequent amendments to or replacements of the statute or regulations.
- (f) Legislation. Any reference to a statute includes and is a reference to such statute and to the regulations made pursuant thereto, with all amendments made thereto and as in force from time to time, and to any statute and regulations that may be passed which have the effect of supplementing or superseding such statutes and regulations.
- (g) Time. Time shall be of the essence of this Agreement and each part of it. If any party expressly or impliedly waives this requirement, that party may reinstate it by delivering notice to the other party(ies). If a time is specified in this Agreement for observing or performing any obligation, such time shall be local Vancouver, British Columbia time.

ARTICLE 2 RESTRICTIONS ON USE AND SUBDIVISION

- 2.1 The Owner covenants and agrees with the City, in respect of the use of the Lands and the construction and use of the New Building, that throughout the Term that:
- (a) the Lands and the New Building will not be used in any way that is inconsistent with the terms of this Agreement;
 - (b) it will design, construct, equip and finish within the New Building not less than 88 Dwelling Units, as more particularly approved in the Development Permit, all of which will be for use only as Social Housing (the “**Social Housing Units**”), in accordance with the Development Permit, any building permit issued pursuant thereto and the requirements of this Agreement, and if the New Building is damaged, destroyed or demolished before the 60 year anniversary of the issuance of the final Occupancy Permit for the New Building as initially constructed, then it will promptly take all steps reasonably necessary to enable it to repair the New Building or build a replacement building or buildings on the Lands, which repaired New Building or replacement building(s) will contain not less than the same number and type of replacement Social Housing Units as the New Building formerly contained (each such replacement Social Housing Unit hereinafter referred to as a “**Replacement Social Housing Unit**”) and will be subject, for the remaining duration of the Term, to the same use restrictions as the Social Housing Units and the New Building are pursuant to this Agreement;
 - (c) the Dwelling Units in the New Building will be used only in a manner that ensures its continued compliance with the definition of Social Housing, and for certainty, the New Building may also be used for the operation of a community centre or neighbourhood house, as contemplated in the Rezoning;
 - (d) after the issuance of the initial Occupancy Permit for the New Building and thereafter throughout the remainder of the Term, not less than 30% of the Social Housing Units will be:
 - (i) occupied only by households with incomes below the then current applicable HIL; and
 - (ii) each rented at a rate no higher than 30% of the aggregate household income of the members of the household occupying such Social Housing Unit;
 - (e) the Social Housing Units will only be used for the purpose of providing Rental Housing;
 - (f) except by way of a tenancy agreement to which the *Residential Tenancy Act* applies, it will not suffer, cause or permit, beneficial or registered title to any Social Housing Unit to be sold or otherwise transferred unless:

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Housing Agreement (Social Housing)
282 West 49th Avenue

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- (i) every Social Housing Unit is sold or otherwise transferred together and as a block to the same one or more legal and beneficial owner(s) as to an undivided legal and/or beneficial interest; and
- (ii) the sale or transfer is to a Permitted Transferee or it otherwise obtains the express written consent of the City;
- (g) subject to Section 7.1, it will not suffer, cause or permit the Lands, or any part thereof, to be subdivided by strata plan or air space plan without the prior written consent of the City, which consent may be arbitrarily withheld;
- (h) any sale or other transfer of title to a Social Housing Unit in contravention of the covenant in Section 2.1(f), and any subdivision of the Lands in contravention of Section 2.1(g), will in each case be of no force or effect, and the City will be entitled to the cancellation of the registration of any offending transfer of title or plan, as the case may be, at the Owner's expense;
- (i) the Social Housing Units will only be rented on a month-to-month or longer basis and in no case for less than one month at a time;
- (j) after the issuance of the initial Occupancy Permit for the New Building and thereafter throughout the remainder of the Term, all of the Social Housing Units will be owned by the same one or more non-profit corporations, non-profit co-operative associations, or by or on behalf of the City, the Province of British Columbia or Canada or by any combination thereof, provided any such combination is permitted under the Vancouver Development Cost Levy By-law No. 9755 and the City of Vancouver Zoning and Development By-law No. 3575;
- (k) it will insure, or cause to be insured, the Lands and the New Building and all parts thereof to the full replacement cost against perils normally insured against in Vancouver by reasonable and prudent owners of similar buildings and lands; and
- (l) it will keep and maintain the Lands and the New Building and all parts thereof in good repair and in a safe, clean, neat and tidy condition. If the Lands or the New Building or any part thereof is damaged, the Owner will promptly restore and repair the same whenever and as often as damage occurs, to at least as good a state and condition as existed before such damage occurred, reasonable wear and tear excepted;
- (m) it will not incur, grant or suffer to exist any Security Interest with respect to the Lands, other than for reasonable on-site capital funding, renewal and improvement of the New Building and any such Security Interest will be subject to prior approval by City Council unless such Security Interest will be discharged or released either (i) prior to issuance of the initial Occupancy Permit for the New Building, or (ii) within 60 days following the issuance of the initial Occupancy Permit for the New Building pursuant to solicitor undertakings given by the Owner's solicitors that are acceptable to the City;

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Housing Agreement (Social Housing)
282 West 49th Avenue

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- (n) it will inform the City of any financial or other agreements in place with respect to delivery, ownership or operation of the New Building in the case of private development partnerships with non-profit organizations and will provide copies of such agreements to the City upon request, unless such financial or other agreement will be terminated or released either (i) prior to issuance of the initial Occupancy Permit for the New Building, or (ii) within 60 days following the issuance of the initial Occupancy Permit for the New Building pursuant to solicitor undertakings given by the Owner's solicitors that are acceptable to the City; and
- (o) it will ensure that that the Building Maintenance and Capital Asset Plan is implemented and complied with, to the satisfaction of the General Manager of Planning, Urban Design and Sustainability.

ARTICLE 3 OCCUPANCY RESTRICTION ON THE LANDS

3.1 The Owner covenants and agrees with the City in respect of the use of the Lands and the New Building, that:

- (a) the Lands and the New Building will not be used or occupied except as follows:
 - (i) the Owner will not apply for any Occupancy Permit in respect of, and will not suffer or permit the occupation of, any part of any Building on the Lands (except for the Social Housing Units) and will take no action, directly or indirectly, to compel the issuance of any Occupancy Permit for any part of any Building on the Lands (except for the Social Housing Units), until such time as the Owner is able to apply for an Occupancy Permit for all of the Social Housing Units; and
 - (ii) the Owner has delivered, to the General Manager of Planning, Urban Design and Sustainability, in form and substance satisfactory to the General Manager of Planning, Urban Design and Sustainability:
 - A. a final rent roll confirming the rents to be charged to the first occupants, listed by unit bedroom type, of the Social Housing Units following issuance of the Occupancy Permit for the New Building satisfy the requirements of Section 2.1(d);
 - B. evidence the unit type mix and size of the constructed, equipped and finished Social Housing Units satisfy the requirements set out in the Development Permit; and
 - C. the Building Maintenance and Capital Asset Plan; and
- (b) the City will be under no obligation to issue any Occupancy Permit for the New Building or any part thereof, notwithstanding completion of construction of the New Building until such time as the Owner has complied with Section 3.1(a).

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- 3.2 Without limiting the general scope of ARTICLE 6, the Owner does hereby waive, remise and release absolutely any and all claims against the City and City Personnel for any Losses that may derive from the withholding of an Occupancy Permit until there is compliance with the provisions of this ARTICLE 3, except to the extent such Losses are the result of the gross negligence or wrongful intentional acts of the City or the City Personnel.

ARTICLE 4 RECORD KEEPING AND BUILDING MAINTENANCE AND CAPITAL ASSET PLAN

- 4.1 The Owner will keep accurate records pertaining to the use and occupancy of the Social Housing Units. Such records will be to the satisfaction of the City (provided that the Owner is only required to keep records for any particular tenant of a Social Housing Unit for a period of seven (7) years from the date on which such tenant has vacated a Social Housing Unit). At the request of the City, from time to time, the Owner will make such records available for inspection and copying by the City. The City will comply with the Owner's statutory obligations with respect to privacy of such information.
- 4.2 Every five years during the Term, or such other frequency and timing as may be agreed upon between the City and the Owner in writing, the Owner will provide a report summarizing compliance with the Building Maintenance and Capital Asset Plan to the City. Upon request of the City from time to time the Owner will provide the City Personnel with access to the Building to monitor compliance with the Building Maintenance and Capital Asset Plan.

ARTICLE 5 ENFORCEMENT

- 5.1 This Agreement may be enforced by mandatory and prohibitory orders of the court. In any action to enforce this Agreement if the City is entitled to court costs, it shall be entitled to court costs on a solicitor and own client basis.

ARTICLE 6 RELEASE AND INDEMNITY

- 6.1 Release and Indemnity. Subject to Section 3.2, the Owner hereby:
- (a) releases and discharges the City and all City Personnel from and against all Losses which may arise or accrue to the Owner and covenants and agrees to indemnify and save harmless the City and all City Personnel from and against all Losses which may arise, accrue or be incurred by the City or any City Personnel or which are made by any person, firm or corporation against the City or any City Personnel or which the City or any City Personnel may pay, incur, sustain or be put to:
- (i) by reason of the City or City Personnel:

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- A. reviewing, accepting or approving the design, specifications, materials and methods for construction, maintenance or repair of the New Building or any part thereof;
 - B. performing any work in accordance with the terms of this Agreement or requiring the Owner to perform any work pursuant to this Agreement;
 - C. withholding any permit pursuant to this Agreement; or
 - D. exercising any of its rights under any Section 219 covenant or other right granted to the City pursuant to this Agreement; or
- (ii) that otherwise arise out of, or would not have been incurred but for this Agreement;
- except to the extent such Losses are the result of the gross negligence or wrongful intentional acts of the City or the City Personnel; and
- (b) covenants and agrees to indemnify and save harmless the City and City Personnel, from and against all Losses which may arise or accrue to any person, firm or corporation against the City or any City Personnel or which the City or any City Personnel may pay, incur, sustain or be put to, by reason of or which could not have been sustained "but for" any of the following:
- (i) this Agreement;
 - (ii) the release of any of all of the City's rights under this Agreement or the loss or of any rights purported to be granted hereby, except if such release or loss is expressly agreed to by the City;
 - (iii) the City or City Personnel:
 - A. reviewing, accepting or approving the design, specifications, materials and methods for construction, maintenance or repair of the New Building or any part thereof;
 - B. withholding any permit pursuant to this Agreement;
 - C. performing any work in accordance with the terms of this Agreement or requiring the Owner to perform any work pursuant to this Agreement; or
 - D. exercising any of its rights under any Section 219 covenant or other right granted to the City pursuant to this Agreement;
 - (iv) any negligent act or omission or wilful misconduct of the Owner or any of the Owner's Personnel in connection with the observance and performance of the obligations of the Owner under this Agreement; or

- (v) any default in the due observance and performance of the obligations and responsibilities of the Owner under this Agreement,

except to the extent such Losses are the result of the gross negligence or wrongful intentional acts of the City or the City Personnel.

The indemnities in this ARTICLE 6 will be both personal covenants of the Owner (subject to Section 9.1) and integral parts of the Section 219 covenants granted in this Agreement.

6.2 Conduct of Proceedings.

- (a) In the event that a claim is made against the City which, pursuant to the terms of this Agreement, requires the Owner to indemnify the City or City Personnel, then the City will give notice of such claim to the Owner and, subject to Section 6.2(b), the Owner will have the right, upon written notice to the City, to conduct the proceedings in defence of the claim.
- (b) Section 6.2(a) will not apply and the City will have the right to conduct the defence of any claim described in Section 6.2(a) in the following circumstances:
 - (i) where the City Manager determines that the proper administration of the municipal government requires that decisions with respect to the claim be made by the City;
 - (ii) where the City Manager determines that the public interest requires that the matter be resolved in an open and public way; or
 - (iii) where, in the opinion of the City Manager, the claim is of a nature where decisions with respect to settling or defending it would create a precedent with respect to other existing or potential claims affecting or involving the City;

provided however that if the City wishes to settle any claim, the City will not do so without the prior consent of the Owner, which consent will not be unreasonably withheld. In conducting any defence or making any settlement, the City will act in a manner reasonably consistent with the manner in which the City would act in connection with the defence or settlement of claims, suits, demands, actions or proceedings which would not be indemnified against under the provisions of this Section 6.2(b); and

- (c) Regardless of whether the claim is being defended under Section 6.2(a) or Section 6.2(b), the party having conduct of the proceedings will, upon written request of the other party, provide to the other party all information in its possession relating to the proceedings which may be properly disclosed at law. If the party not having conduct of the proceedings so requests in writing in a

timely fashion, the party having conduct of the proceedings will join the other party as a third party to the proceedings.

- 6.3 Survival of Release and Indemnities. The release and indemnities in this Article 6 will remain effective, and survive any modification of, or partial release or release of the covenants created by this Agreement, and any termination of this Agreement, whether by fulfilment of the covenants contained in this Agreement or otherwise, provided that the Owner will not be liable for failing to comply with any obligations set out in this Agreement, or any Losses incurred or sustained by the City or City Personnel, solely relating or arising in relation to any period after which the Owner ceases to be the owner of the Lands.

ARTICLE 7 SUBDIVISION OF THE LANDS

- 7.1 Subdivision of the Lands: Notwithstanding Section 2.1(g):
- (a) subject to compliance by the Owner with all applicable requirements of the City's Approving Officer and the City's elected Council, this Agreement and all applicable laws and by-laws, the City will not unreasonably withhold its consent to a Subdivision to enable, *inter alia*, all of the Social Housing Units to be contained within the Social Housing Parcel; and
 - (b) following such Subdivision and the issuance of an Occupancy Permit for the Social Housing Parcel, the Owner may apply to the City for a discharge of this Agreement with respect to any legal parcel other than the Social Housing Parcel, and the City will on request of the Owner execute and deliver a registrable discharge of this Agreement in respect of such other parcel(s), provided that:
 - (i) the Director of Legal Services is satisfied that such discharge will not unreasonably alter, restrict or limit the City's rights and the Owner's agreements and obligations in respect of the Social Housing Units or in respect of the Social Housing Parcel pursuant to this Agreement;
 - (ii) any such discharge will be in form and substance acceptable to the Director of Legal Services and will be prepared by the Owner at its cost;
 - (iii) the City will have a reasonable amount of time to execute and return any such discharge; and
 - (iv) the preparation and registration of the any such discharge will be without cost to the City.
- 7.2 Discharge: Following any such subdivision and discharge in accordance with Section 7.1, this Agreement will be read and applied so that the obligations herein, except those set out in ARTICLE 3, will apply only to the Social Housing Parcel.

ARTICLE 8 NOTICES

- 8.1 All notices, demands or requests of any kind which one party may be required or permitted to give to the other in connection with this Agreement, shall be in writing and shall be given by registered mail or personal delivery, addressed as follows:

- (a) If to the City:

City of Vancouver
453 West 12th Avenue
Vancouver, British Columbia V5Y 1V4

Attention: City Clerk, with concurrent copies to the General Manager of Planning, Urban Design and Sustainability and the Director of Legal Services

- (b) If to the Owner, addressed to it at the address shown on title to the Lands, or applicable part thereof,

and any such notice, demand or request will be deemed given:

- (c) if made by registered mail, on the earlier of the day receipt is acknowledged by the addressee or the third day after it was mailed, except when there is a postal service disruption during such period, in which case delivery will be deemed to be completed upon actual delivery of the notice, demand or request; and

- (d) if personally delivered, on the date when delivered,

or to such other address in Canada as either party may specify in writing to the other party in the manner described above.

ARTICLE 9 MISCELLANEOUS

- 9.1 Agreement Runs With the Lands. The covenants and agreements set forth herein on the part of the Owner shall be covenants the burden of which shall run with and shall bind the Lands and shall attach thereto and run with each and every part into which the same may be subdivided or consolidated. Upon the sale or transfer of the legal or beneficial interest in the Lands, the parties agree that the covenants and agreements herein contained shall only be binding upon the transferring party in respect of a breach or acts or omissions occurring during its ownership of the Lands, and the transferring party shall otherwise be released from all covenants and agreements herein contained following such sale or transfer of the legal or beneficial interest in the Lands.

- 9.2 Agreement to be a First Charge. The Owner agrees to cause the registrable interests in land expressly agreed to be granted pursuant to this Agreement to be registered as first registered charges against the Lands, save only for any reservations, liens, charges or encumbrances:
- (a) contained in any Crown grant respecting the Lands;
 - (b) registered against any of the titles to the Lands at the instance of the City, whether in favour of the City or otherwise, as a condition of the Rezoning or Development Permit; and
 - (c) which the Director of Legal Services has determined, in his or her sole discretion, may rank in priority to the registrable interests in land granted pursuant to this Agreement.
- 9.3 Severability. All the obligations and covenants contained in this Agreement are severable, so that if any one or more of the obligations or covenants are held by or declared by a court of competent jurisdiction to be void or unenforceable; the balance of the obligations and covenants will remain and be binding.
- 9.4 Vancouver Charter. Nothing contained or implied herein will derogate from the obligations of the Owner under any other agreement with the City or, if the City so elects, prejudice or affect the City's rights, powers, duties or obligations in the exercise of its functions pursuant to the *Vancouver Charter*, and the rights, powers, duties and obligations of the City under all public and private statutes, by-laws, orders and regulations, which may be, if the City so elects, as fully and effectively exercised in relation to the Lands as if this Agreement had not been executed and delivered by the Owner and the City.
- 9.5 Waiver. The Owner acknowledges and agrees that no failure on the part of the City to exercise and no delay in exercising any right under this Agreement will operate as a waiver thereof nor will any single or partial exercise by the City of any right under this Agreement preclude any other or future exercise thereof or the exercise of any other right. The remedies herein provided will be cumulative and not exclusive of any other remedies provided by law and all remedies stipulated for the City herein will be deemed to be in addition to and not, except as herein expressly stated, restrictive of the remedies of the City at law or in equity.
- 9.6 Further Assurances. The Owner will execute such further and other documents and instruments and do such further and other acts as may be necessary to implement and carry out the provisions and intent of this Agreement including all acts necessary to ensure that this Agreement is noted on title to the Lands as a housing agreement pursuant to Section 565.2 of the *Vancouver Charter*.
- 9.7 Perfection of Intention. The Owner shall, after execution hereof, do or cause to be done at its own cost and expense all things and acts necessary to ensure that this Agreement is noted on title to the Lands as a housing agreement pursuant to Section 565.2 of the *Vancouver Charter* and also registered as a charge against title to the Lands with priority over all other encumbrances except those in favour of the City.

9.8 Owner's Representations and Warranties. The Owner represents and warrants to and covenants and agrees with the City that:

- (a) it has the full and complete power, authority and capacity to enter into, execute and deliver this Agreement and to bind all legal and beneficial interests in the title to the Lands with the interests in land created hereby;
- (b) upon execution and delivery of this Agreement and registration thereof, the interests in land created hereby will encumber all legal and beneficial interests in the title to the Lands;
- (c) this Agreement will be fully and completely binding upon the Owner in accordance with its terms and the Owner will perform all of its obligations under this Agreement in accordance with its terms; and
- (d) the foregoing representations, warranties, covenants and agreement will have force and effect notwithstanding any knowledge on the part of the City whether actual or constructive concerning the status of the Owner with regard to the Lands or any other matter whatsoever.

9.9 Sale of Lands or New Building. Subject to Sections 2.1(f) and 2.1(g), the Option to Purchase, the Option to Lease and the ROFR, prior to the sale or transfer of any legal or beneficial interest, other than the transfer of an interest by way of a mortgage which is granted either:

- (a) prior to the issuance of the initial Occupancy Permit for the New Building (which mortgage will, for certainty, be discharged either (i) prior to issuance of the initial Occupancy Permit for the New Building, or (ii) within 60 days following the issuance of the initial Occupancy Permit for the New Building pursuant to solicitor undertakings given by the Owner's solicitors that are acceptable to the City); or
- (b) after the issuance of the initial Occupancy Permit for the New Building as contemplated by Section 2.1(m),

where the mortgagee has first granted the Section 219 Covenants contained herein priority, in form and substance satisfactory to the City, over its mortgage or such mortgage has been registered after the Section 219 Covenants, the Owner of the Lands and the New Building will cause the purchaser/transferee to enter into an assumption agreement with the City, in form and substance satisfactory to the Director of Legal Services, pursuant to which the purchaser/transferee will agree to be bound by all of the obligations, agreements and indemnities of such Owner under this Agreement. The provisions in this Section will apply equally to all subsequent purchasers/transferees.

9.10 Enurement. This Agreement shall enure to the benefit of and be binding upon the City and its successors and assigns, and this Agreement shall enure to the benefit of and be binding upon the Owner and its successors and assigns.

IN WITNESS WHEREOF the parties have executed this Agreement on Form C or D which is a part hereof.

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CONSENT AND PRIORITY INSTRUMENT

In this consent and priority Agreement:

- (a) **“Existing Charges”** means the Mortgage registered under number CB990798 and the Assignment of Rents registered under number CB990799;
- (b) **“Existing Chargeholder”** means MUSQUEAM CAPITAL CORP., as to an Undivided 6/10 Interest and TOWNLINE VENTURES LTD., as to an Undivided 4/10 Interest;
- (c) **“New Charges”** means the Housing Agreement and Section 219 Covenant contained in the attached Terms of Instrument - Part 2; and
- (d) words capitalized in this instrument, not otherwise defined herein, have the respective meanings ascribed to them in the attached Terms of Instrument - Part 2.

For Ten Dollars (\$10.00) and other good and valuable consideration, the receipt and sufficiency of which the Existing Chargeholder acknowledges, the Existing Chargeholder:

- (i) consents to the Owner granting the New Charges to the City; and
- (ii) agrees with the City that the New Charges charge the Lands in priority to the Existing Charges in the same manner and to the same effect as if the Owner had granted the New Charges, and they had been registered against title to the Lands, prior to the grant or registration of the Existing Charges or the advance of any money under the Existing Charges.

To witness this consent and priority instrument, the Existing Chargeholder has caused its duly authorized signatories to sign the attached General Instrument - Part 1.

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CONSENT AND PRIORITY INSTRUMENT

In this consent and priority Agreement:

- (a) **"Existing Charges"** means the Right of First Refusal registered under number CB990801;
- (b) **"Existing Chargeholder"** means MUSQUEAM CAPITAL CORP. and TOWNLINE VENTURES LTD.;
- (c) **"New Charges"** means the Housing Agreement and Section 219 Covenant contained in the attached Terms of Instrument - Part 2; and
- (d) words capitalized in this instrument, not otherwise defined herein, have the respective meanings ascribed to them in the attached Terms of Instrument - Part 2.

For Ten Dollars (\$10.00) and other good and valuable consideration, the receipt and sufficiency of which the Existing Chargeholder acknowledges, the Existing Chargeholder:

- (i) consents to the Owner granting the New Charges to the City; and
- (ii) agrees with the City that the New Charges charge the Lands in priority to the Existing Charges in the same manner and to the same effect as if the Owner had granted the New Charges, and they had been registered against title to the Lands, prior to the grant or registration of the Existing Charges or the advance of any money under the Existing Charges.

To witness this consent and priority instrument, the Existing Chargeholder has caused its duly authorized signatories to sign the attached General Instrument - Part 1.

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CONSENT AND PRIORITY INSTRUMENT

In this consent and priority Agreement:

- (a) **"Existing Charges"** means the Lease registered under number CB1069071;
- (b) **"Existing Chargeholder"** means YMCA BC;
- (c) **"New Charges"** means the Housing Agreement and Section 219 Covenant contained in the attached Terms of Instrument - Part 2; and
- (d) words capitalized in this instrument, not otherwise defined herein, have the respective meanings ascribed to them in the attached Terms of Instrument - Part 2.

For Ten Dollars (\$10.00) and other good and valuable consideration, the receipt and sufficiency of which the Existing Chargeholder acknowledges, the Existing Chargeholder:

- (i) consents to the Owner granting the New Charges to the City; and
- (ii) agrees with the City that the New Charges charge the Lands in priority to the Existing Charges in the same manner and to the same effect as if the Owner had granted the New Charges, and they had been registered against title to the Lands, prior to the grant or registration of the Existing Charges or the advance of any money under the Existing Charges.

To witness this consent and priority instrument, the Existing Chargeholder has caused its duly authorized signatories to sign the attached General Instrument - Part 1.

END OF DOCUMENT

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